

Applicable Law Acts

Applicable Law Acts & Synthesis

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User Query :

During an argument in the parking area of my apartment building, my neighbour hit me several times with an iron rod. I suffered a fracture and required hospital treatment. CCTV cameras recorded the incident and two residents witnessed what happened. What legal provisions may apply to this case?

Job Id. : qwen3-30b/Scenario 6/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The assault itself is not an IT Act offence merely because CCTV exists.

✓ STRENGTHS & RIGHTS

- 1
- Avoids confusing evidentiary technology with a cybercrime.

✗ RISKS & OBLIGATIONS

- 1
- If specialised electronic-evidence examination is later required, that is ancillary to the core assault analysis.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Handle CCTV proof under the BSA.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 116 — Grievous hurt

A fracture is expressly included within grievous hurt.

Section 117 (2) — Voluntarily causing grievous hurt

Relevant where grievous hurt is voluntarily caused.

Section 118 (2) — Voluntarily causing grievous hurt by dangerous weapons or means

Applies if the iron rod, as used, qualifies as an instrument which when used as a weapon of offence is likely to cause death.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The fracture makes grievous hurt central. **Section 118 (2)** is stronger than ordinary grievous-hurt liability if the manner in which the iron rod was used satisfies the dangerous-weapon requirement.

✓ STRENGTHS & RIGHTS

1 Medical evidence of fracture and eyewitness/CCTV evidence materially support the elements.

✗ RISKS & OBLIGATIONS

1 Do not automatically label every iron-rod assault as **section 118 (2)** without considering how the rod was used and the statutory dangerous-weapon test.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve medical records and identify the eyewitnesses.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 55 — Oral evidence to be direct

Relevant to the two residents who directly witnessed the assault.

Section 61 — Electronic or digital record

CCTV footage is an electronic/digital record.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving CCTV footage/computer output.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The eyewitnesses are governed by the rules on direct oral evidence, while CCTV proof falls under the electronic-record provisions.

✓ STRENGTHS & RIGHTS

- 1
- The scenario contains both direct eyewitnesses and contemporaneous CCTV.

✗ RISKS & OBLIGATIONS

- 1
- Do not cite unrelated BSA sections simply because they mention documents.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve the original CCTV source, exported copy, timestamps and chain-of-custody information.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- No core DPDP issue is stated. The central matters are assault and evidence.

✓ STRENGTHS & RIGHTS

- 1
- Avoids overextending data-protection law.

✗ RISKS & OBLIGATIONS

- 1
- Separate CCTV privacy issues would require different facts.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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